April 15, 2026

The Honorable Andrea Stewart-Cousins
President Pro Tempore and Majority Leader
New York State Senate
172 State Street
Capitol Building, Room 330
Albany, NY 12247

RE: S397A - Restrictions on Food Product Advertising – OPPOSE

Dear Majority Leader Stewart-Cousins:

On behalf of the advertising industry, we write to express our opposition to S397A, which as currently written, would impose unnecessary and overly broad restrictions on all marketing and advertising. Its restrictions on speech directed to adults would likely give rise to a host of legal and constitutional questions due to their infringement on the First Amendment speech rights of both advertisers and consumers. Additionally, the lack of clear definitions creates uncertainty, leading to potential legal challenges and unnecessary costs for businesses and the court system.

Advertising plays a crucial role in New York's economy. According to an IHS Markit study, in 2024, advertising generated an estimated $437.1 billion in GDP and supported 1.66 million jobs, or 16.8% of all jobs in New York[1]. Any future legislation in this area must preserve the economic benefits of advertising and marketing by ensuring that responsible advertising continues to provide access to products and services and fuels the New York economy.

I. The bill's broad applicability will make compliance difficult and limit the advertising that all New Yorkers receive.

Although this bill is nominally targeted at children, it is instead aimed at advertising. This bill effectively considers *all* advertising directed to anyone under 18 years of age to be inherently false and deceptive, and it also considers advertising directed to "a parent or guardian acting on a child's behalf" as inherently deceptive as well. This provision could unnecessarily limit advertising aimed at adults, since minors might also see the ads. In addition, the bill also uses an overly broad definition of child from domestic relations law, which covers anyone who has not yet attained 18 years of age. This is inconsistent with other regulations. For example, the Children's Online Privacy Protection Act defines children as individuals under 13, not those under 18.[2] Teenagers up to the age of 18 are different than children 13 and under and often

[1] The Economic Impact of Advertising on the US Economy, 2023-2029, S&P Global Market Intelligence, referenced statistics based on 2024 data, study release: January, 2025.
[2] 16 CFR § 312

can understand advertising. Moreover, the Federal Trade Commission (FTC) has not imposed similar substantive restrictions, even via fencing-in provisions of settlements where the defendant disseminated false and misleading advertisements toward children.[3]

Additionally, the bill requires the assessment of vague factors—like music, language, and social media use—when determining if an ad is aimed at children – even though these same factors are used in all advertising regardless of audience age. The bill further states that "language" includes buzzwords, sayings or phrases that are "trending," but there is no definition, explanation or context for many of these terms. Also, by listing social media as a factor, many older teenagers (and adults) who benefit from advertising provided in the digital ecosystem might be surprised to find themselves included in this prohibition, as they use social media more than younger children. Thus, the expansion would likely regulate all advertising, not just campaigns targeting children. The broad language of the bill would also make any food-related advertising inherently deceptive. This includes advertising for restaurants, the NY State Fair, family vacation locales such as ski resorts, lakes and surrounding wildlife areas, bodegas and supermarkets to name a few.

II. The bills are likely an unconstitutional violation of free speech.

The bill expressly limits speech directed to adults about products they are freely and legally allowed to purchase. This is likely unconstitutional. It is an overly broad infringement on the free speech rights of both conveyors and recipients of marketing messages. The bills do not appear to meet the three-part test established by the U.S. Supreme Court in *Central Hudson v. Public Svc. Comm'n*,[4] because they do not directly advance the state interest involved and the governmental interest could be served as well by a more limited restriction on commercial speech than the current draft proposes.

III. The bills are likely to expose New York companies to enormous litigation risk.

Finally, the bills would amend New York GBL 350, New York's general false advertising statute, by requiring courts to consider specific additional factors when determining whether any advertising concerning a food or food product is false. As this statute contains a private right of action, companies would be exposed to enormous liability through the risk of litigation. This is likely to lead to costly lawsuits, discouraging responsible companies from advertising in New York altogether. To put it plainly, this draft would likely cause more economic harm rather than meaningful consumer protection.

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[3] See, e.g., In re Hasbro, C-3447 (F.T.C. 1993); In re Lewis Galoob Toys, Inc., C-3324 (F.T.C. 1991); In re Mego International, Inc., C-2924 (F.T.C. 1978); In re Uncle Ben's, Inc., et al., C-2870 (F.T.C. 1977).

[4] 447 U.S. 557 (1980)

We appreciate the language referencing nutrition education and physical activity projects. We endorse such educational efforts, as they can help to improve the health and well-being of New York residents. Our members strive to present messages, including those likely to be viewed by children, that are accurate and informative. Many of our members belong to BBB National Programs' Children's Food and Beverage Advertising Initiative (CFBAI), an independent program through which participating food advertisers publicly pledge to not direct any food or beverage advertising to children under 13 or to advertise to children only foods meeting robust nutrition standards. In addition, our members have participated in public service announcements and other advertising to increase physical activity and healthy lifestyles.

Lastly, existing legal frameworks also advance the draft's stated goals – creating a potential for issues of duplication and confusion. For example, the FTC Act already provides robust protection for children, as it prohibits false, deceptive, and unfair advertising, and requires advertising to be viewed from the lens of a reasonable member of the targeted audience.[5] The Food and Drug Administration (FDA) also prohibits false and misleading statements on food labels and labeling, as well as food advertising.

We appreciate your consideration of our views, and request that you do not advance S397A as currently drafted. Please do not hesitate to contact us if you desire further information.

Sincerely,

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CC: The Honorable Zellnor Myrie, New York State Senate

[5] See FTC Policy Statement on Deception, at 2-3.